

Affiliate Terms & Conditions - March 18, 2026

This Affiliate Agreement ("Agreement") is entered into as of the date of the later signature below ("Effective Date") by and between TCGplayer, Inc. ("TCGp"), and the individual or entity identified below ("Referral Affiliate").

WHEREAS, TCGp offers a platform through which consumers can purchase collectibles, including without limitation trading cards and Magic cards (the "TCGp Platform"), and Referral Affiliate wishes to advertise, market and promote the same.

NOW, THEREFORE, TCGp and Referral Affiliate hereby agree as follows.

1. Overview. Subject to the terms of this Agreement, Referral Affiliate may advertise, market and promote the TCGP Platform to consumers (the "Purpose") through the use of a unique code (the "Affiliate Link") provided by TCGP. TCGP also may provide to Referral Affiliate certain advertising, marketing and promotional materials for the TCGP Platform ("TCGP Materials"), which TCGP Materials Referral Affiliate shall have the right, unless otherwise notified in writing by TCGP (email to suffice), to use (but not modify) and distribute only in a manner specified by TCGP and only for use in connection with the Purpose pursuant to this Agreement. Referral Affiliate covenants that it shall conduct all such activities, and use any Affiliate Link or TCGP Materials, in accordance with applicable laws, rules, regulations and ordinances and only in a manner that is not offensive, indecent or defamatory, or that does not otherwise, in TCGp's sole discretion, impose any risk of harm to the brand or reputation of TCGP or its affiliates. Referral Affiliate shall not otherwise advertise, market or promote any TCGp Platform, or otherwise make any representation, warranty, claim, assertion or other commitment regarding the TCGp Platform.

2. Commission. TCGp shall pay Referral Affiliate the commission set forth in Schedule A. Each such payment shall be accompanied by a reasonably detailed report specifying the calculation thereof, which shall be calculated and reported monthly. TCGP shall issue payments for accrued commissions within forty-five (45) days following the end of each calendar month via Impact to the account on file. Except as expressly provided in Schedule A, Referral Affiliate shall be entitled to no commission, fees or other consideration pursuant to this Agreement or the activities contemplated herein.

3. Term and Termination. This Agreement shall be effective as of the Effective Date and remain in effect until terminated by either party, at their convenience, upon written notice to the other (email to suffice) ("Term"). Upon the termination of this Agreement, (a) TCGP shall reasonably promptly thereafter pay to Referral Affiliate all payments of commissions that accrued prior to the termination date thereof, and (b) Sections 4 to 7 shall survive.

4. Ownership. TCGP shall own all right, title and interest in and to the TCGP Platform, the TCGP Materials, and any and all information regarding Qualifying Consumers or Qualifying Purchases.

5. Disclaimer. TCGP PROVIDES NO WARRANTY OF ANY NATURE AS TO THE TCGP PLATFORM OR ANY TCGP MATERIALS, ALL OF WHICH ARE PROVIDED "AS IS" AND "AS AVAILABLE". TCGP

SPECIFICALLY DISCLAIMS ALL WARRANTIES, EXPRESS, IMPLIED, OR STATUTORY, INCLUDING, WITHOUT LIMITATION, THE IMPLIED WARRANTIES OF TITLE, MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE AND/OR NONINFRINGEMENT OF THIRD PARTY RIGHTS.

6. Limitation of Liability. TCGP SHALL NOT BE LIABLE IN CONNECTION WITH THIS AGREEMENT TO REFERRAL AFFILIATE (A) FOR ANY CONSEQUENTIAL, INCIDENTAL, INDIRECT, SPECIAL, EXEMPLARY OR PUNITIVE DAMAGES, EVEN IF TCGP HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES (COLLECTIVELY, "EXCLUDED DAMAGES") OR (B) FOR ANY AMOUNT EXCEEDING THE GREATER OF \$500 OR THE COMMISSION OWED HEREUNDER PURSUANT TO SCHEDULE A (THE "LIABILITY CAP"). NOTWITHSTANDING THE FOREGOING, THE EXCLUSIONS IN SECTION (A) AND THE LIABILITY CAP IN SECTION (B) SHALL NOT APPLY TO TCGP'S OBLIGATIONS UNDER SECTION 7 (INDEMNIFICATION) OR TO BREACHES OF SECTION 8 (CONFIDENTIALITY).

7. Indemnification. Referral Affiliate agrees to indemnify, defend, and hold harmless TCGP, its officers, directors, and employees, from and against any claims, damages, liabilities, and expenses (including reasonable legal fees) arising from (a) the Affiliate's breach of any term of this Agreement or (b) any negligence or willful misconduct by the Affiliate in performing its duties.

8. Trademark Bidding. Referral Affiliate shall not bid on TCGp's trademarked terms for the purpose of Search Engine Marketing, nor shall Referral Affiliate register, use, or incorporate any TCGp trademarked terms, URLs, or any confusingly similar variations thereof into any domain name, social media handle, or email address. Trademarked terms including, but not limited to, "TCGplayer", "TCGplayer.com", "Trading Card Game Player" and "TCGp".

9. Confidentiality. Referral Affiliate acknowledges that all non-public information disclosed by TCGP, including, without limitation, the terms of this Agreement, product-level sales data, information about Qualifying Consumers or Qualifying Purchases, total order values, individual item values, commission values, item categories and sub-categories, and landing page URLs, is "Confidential Information." Referral Affiliate will not disclose this Confidential Information to any third party outside of Referral Affiliates' organization, except as required by law, nor use any such information other than in connection with the activities under this Agreement.

10. Miscellaneous. This Agreement shall be governed by and construed in accordance with the laws of the State of New York. Any disputes, actions, claims, or causes of action arising out of or in connection with this Agreement shall be subject to the exclusive jurisdiction of the state and federal courts located in New York, New York, and each party agrees to submit to the jurisdiction of such courts. This Agreement may be modified or amended only upon mutual written agreement. If any provision of this Agreement is, for any reason, held to be invalid or unenforceable, the other provisions of this Agreement will remain valid and enforceable to the maximum extent permitted by law. This Agreement (and any Schedule hereto) represents the entire agreement of the parties regarding the subject matter hereof and supersedes all prior discussions and/or agreements between the parties.

11. Affiliate URLs. Referral Affiliates' promotional properties' names or URLs of websites, apps, or social channels shall not contain TCGP's trademarked terms including, but not limited to, "TCGplayer", "TCGplayer.com", "Trading Card Game Player" and "TCGP".

12. Transaction Data. TCGplayer transaction data is exclusively for the purposes of internal reporting and is not to be shared with third parties outside of Referral Affiliates' organization. Transaction data includes but is not limited to: total order values, individual item values, commission values, item categories and sub-categories, and landing page URLs.

13. Relationship of the Parties. The parties are independent contractors. Nothing in this Agreement shall be deemed to constitute TCGp and Referral Affiliate as partners, joint venturers, or co-owners, or constitute either party as the employee or agent of the other for any purpose. Referral Affiliate shall have no authority to make any representation, warranty, or commitment on behalf of TCGp or to bind TCGp in any manner whatsoever. Referral Affiliate will be solely responsible for all tax, withholding, and other statutory or contractual obligations of any nature arising from the compensation paid to the Referral Affiliate by TCGp.

14. Notice. All notices, requests, demands, and other communications under this Agreement shall be in writing and shall be deemed to have been duly given when received if personally delivered, or upon confirmed electronic transmission if sent by email.

15. Compliance and Disclosure. Referral Affiliate must comply with all applicable laws and regulations, including those regarding email marketing and privacy. Referral Affiliate shall clearly and conspicuously disclose its material relationship with TCGp in all related promotional materials as required by law (e.g., FTC disclosure rules).

16. Fraud and Abuse. TCGp may withhold or cancel commission payments and/or terminate this Agreement immediately if it determines, in its sole discretion, that Referral Affiliate has engaged in any form of fraud, abuse, or attempted manipulation of the Affiliate Link or TCGp Platform, including the use of automated tools or fake purchases.

Schedule A

Qualifying Consumers, Qualifying Purchases, Commission

- Further Definitions:
 - A "Qualifying Consumer" shall mean a consumer that is directed to the TCGP Platform through Referral Affiliate's Affiliate Link that opens a unique data-feed; and is not otherwise prevented from having their data passed on due to web browser settings, ad blocker usage or declining consent to be tracked in TCGP's consent management settings.
 - A "Qualifying Purchase" shall mean a purchase (regardless of which item or how many) made through the TCGP Platform by a Qualifying Consumer, as tracked by Impact while the initial data-feed window remains open.
- When a Qualifying Consumer clicks on the Affiliate Link, a new window will open and direct the Qualifying Consumer to the TCGP Platform. Impact shall track the Qualifying Consumer's interactions with the TCGP Platform, including any Qualifying Purchase(s), until the data-feed closes. The data-feed will close if Qualifying Consumer on TCGP Platform does not register an interaction with Qualifying Consumer for forty-eight (48) hours. The data-feed also may close on occasion due to user, computer or connectivity error, or other reasons outside of TCGP's control. Once the data-feed closes, the consumer will cease to be a Qualifying Consumer and any purchases made after the data-feed closes, regardless of the reason, will not qualify as a Qualifying Purchase and will not be eligible for a commission.
- TCGP shall pay to Referral Affiliate a commission equal to three and a half percent (3.5%) or higher of the revenue collected by TCGP for any Qualifying Purchase(s) that a Qualifying Consumer makes during the Term (pursuant to the limitations set forth herein). The commission amount shall be calculated following the deduction of taxes, refunds, discounts, bad debt, credit

card and other payment processing fees, third-party commissions, and other deductions taken by TCGP in the exercise of its reasonable discretion.

- In instances where a Referral Affiliate's contract includes Cost-Per-Click (CPC) commissions for traffic directed to <https://infinite.tcgplayer.com>, and any pages contained on that website, TCGplayer shall pay the Referral Affiliate a commission of \$0.10 per unique click. Any Qualifying Purchases originating with a click through to <https://infinite.tcgplayer.com> shall be commissioned at 0%.
- Commission payments owed hereunder shall be made within fifteen (15) days following the end of each calendar month a transaction locks in during the Term. Referral Affiliate shall be responsible for any taxes levied on amounts paid hereunder, excluding any taxes on the income of TCGP.

Affiliate Code of Conduct

Purpose

- Our Affiliate Code of Conduct outlines our expectations regarding affiliate behavior. Please read and follow the policies below, and reach out with any questions.
- We reserve the right to terminate partnerships or revoke affiliate status for any reason, including noncompliance with the Code of Conduct.

TCGplayer Values

- TCGplayer seeks out affiliates who represent its core values. These include integrity, honesty, and sound judgment. Affiliates should be trustworthy, respectful, and passionate. They should empower their community and be for everyone, which includes embracing diversity and respecting the thoughts and beliefs of others.

Harassment

- Threats, abuse, harassment, bullying, and/or discriminatory behavior by affiliates will not be tolerated.

Fraud & Compliance with Law

- Avoid illegal activity including (but not limited to) fraud, plagiarism, and violence.
- Affiliate links are not intended for personal use. Share affiliate links with your audience.
- Do not abuse the affiliate program by using it in ways not intended.

FTC Disclosure

- Partnership between TCGplayer and its affiliates must be disclosed in an unavoidable way. Disclosures should be prominent and unambiguous to the average member of your audience.
- Be truthful about your experiences and beliefs. Do not say that you've personally purchased or used a product if you have not.
- Examples of proper disclosure: Affiliate link; Promotion; #Sponsored; #Ad

TCGplayer Reputation

- Affiliates must remain in good standing with TCGplayer and eBay.
- Represent TCGplayer in a way that strengthens its reputation. Do not intentionally harm the business or its reputation.
- Be honest in discussing your beliefs and the experiences you've had with TCGplayer.

Affiliate Partner Types Definitions

All affiliate partners in TCGplayer's Affiliate Program are classified as one of two types: Tools and Creators.

Creators:

Creators produce content for TCG enthusiasts. The content itself can take different forms, such as a blog, a YouTube channel, Twitch stream or podcast; and may cover topics such as TCG news, strategies, set releases and more.

Tools:

Tools are typically websites or apps whose primary function provides a service to TCG enthusiasts such as deckbuilding or collection trackers. Every affiliate who is not classified as a Creator is classified as a Tool.